XI.

Conclusion

We **AFFIRM** the district court's refusal to issue a writ of *habeas corpus* with respect to the petitioner's conviction, but we **REVERSE** the district court's judgment as to the petitioner's sentence. We **REMAND** to the district court with instructions to issue a writ of *habeas corpus* vacating the petitioner's death sentence due to the ineffective assistance of counsel at sentencing, unless the state conducts a new penalty phase proceeding within 180 days after remand.

IN THE UNITED STATES DISTRICT COURT
FOR THE WESTERN DISTRICT OF TENNESSEE
WESTERN DIVISION

GARY BRADFORD CONE,	×	
Petitioner,	×	
	×	No. 97-2312-M1/A
vs.	×	
RICKY BELL,	×	
	×	
Respondent.	×	

ORDER DENYING MOTION FOR
EVIDENTIARY HEARING
AND
ORDER OF PARTIAL DISMISSAL

(Filed May 15, 1998)

I. INTRODUCTION

This matter is before the Court on petitioner's Motion for Evidentiary Hearing, filed October 14, 1997. Petitioner, Gary Bradford Cone, an inmate at Riverbend Maximum Security Facility in Nashville, Tennessee, filed a habeas petition pursuant to 28 U.S.C. § 2254, attacking his state conviction of two counts of first degree murder, and the death penalty imposed for those crimes. The respondent warden has filed an answer raising various grounds for dismissing the petition, and the petitioner has filed a motion for an evidentiary hearing as to certain claims. For the reasons set forth below, petitioner's motion is DENIED and the claims addressed in his motion are DISMISSED.

This document entered on docket sheet in compliance with Rule 58 and/or 79 (a) FRCP on 5/18/98.

II. STATE COURT PROCEDURAL HISTORY

A. *Facts of the Crime*

Examination of the record reveals the following undisputed facts. On Saturday, August 9, 1980, Cone robbed a jewelry store in Memphis, Tennessee of about $112,000 worth of expensive watches, rings and other jewelry. Shortly after the robbery, police received a description of the robber from the store manager, spotted petitioner driving his 1972 gray Oldsmobile, and followed him at a normal speed. The suspect became alarmed and led police on a high-speed chase through mid-town Memphis and into a residential neighborhood. There he abandoned his automobile, shot pursuing police officer B. C. Allen, and a citizen, John Douglas Clark, who challenged him, and tried to shoot a third citizen, Herschel Dalton, when Dalton refused to give Cone his car. During the afternoon of August 9, 1980, police seized Cone's car, but he eluded them only to resurface early the next morning in the same neighborhood at the door of Lucille Tuech's apartment. She refused him admittance to make a telephone call and he drew a pistol on her. In the meantime the police had inventoried the car's contents and discovered a large amount of cash, some of which was later attributed to an earlier robbery of a grocery store, an enormous quantity of drugs, and the jewelry store's stolen property.

On the afternoon of Sunday, August 10, 1980, Cone broke through the rear door of the nearby home of an

elderly couple, Shipley O. Todd and his wife, Cleopatra Todd. Mr. Todd was 93 years old and his wife was 79. Cone attempted to coerce them into helping him, and then killed them when they stopped cooperating with him. After the murders, relatives of the Todds became concerned because they were unable to contact the Todds at their home. Three days after the murders, the bodies of Mr. and Mrs. Todd were found in their home, horribly mutilated and cruelly beaten. The police found Cone's fingerprints and hair samples in the ransacked home. Cone then went to the airport and flew from Memphis to Florida, where he appeared at the home of an acquaintance on August 12, 1980. Cone was thereafter arrested on charges in Florida, and the Memphis police investigation led to his arrest and return to Tennessee on charges arising out of the August 9-10, 1980 crimes.

B. *Petitioner's State Court Trial Proceedings*

On August 19, 1980, a Shelby County Grand Jury indicted Cone for first degree murder in the perpetration of a burglary and first degree murder in the death of Shipley Todd, (case number B-74703), and first degree murder in the perpetration of a burglary and first degree murder in the death of Cleopatra Todd, (case number B-74702). *See* Addendum 1, Document 1, (State Court Record), at 2-8. On September 5, 1980, the grand jury indicted Cone for assault with intent to commit murder in the first degree against Dalton, (case number B-74898), assault with intent to commit murder in the first degree against Officer Allen, (case number B-74898), assault with intent to commit murder in the first degree against Clark

(case number B-74899), and robbery with a deadly weapon of the jewelry store, (case number B-74902). *Id.* at 11-19.

From April 14 to 23, 1982, Criminal Court Judge James C. Beasley, Sr., presided at a jury trial, which concluded with the jury finding Cone guilty on all charges and sentencing him to 10 to 25 years on the assaults, life imprisonment on the robbery, and death on the two murder indictments. *Id.* at 165-68. Cone appealed as of right to the Tennessee Supreme Court, which affirmed the conviction and sentence. *State v. Cone*, 665 S.W.2d 87 (Tenn. 1984), *cert. denied, Cone v. Tennessee*, 467 U.S. 1210 (1984). Addendum 1, Docs. 4, 7.

C. *State Court Collateral Proceedings – First Petition*

On June 22, 1984, Cone filed, through counsel, his first post-conviction petition attacking the conviction and death sentence. In that petition, he contended his rights had been violated under the First, Fourth, Fifth, Sixth, Eighth, Ninth, and Fourteenth Amendments to the United States Constitution, and under various state laws, rules of court, and constitutional provisions. In particular, he claimed that his attorney had provided ineffective assistance of counsel by failing to: 1) advise him properly; 2) make timely objections; 3) conduct adequate voir dire of the jury; or 4) discuss penalty stage strategy. Addendum 2, Doc. 1 at 27-29.

On November 21, 1984, Cone's post-conviction counsel filed an amended petition claiming that the prosecutors engaged in misconduct during the closing arguments

of the guilt phase of Cone's trial by arguing that the jurors should reject Cone's drug-user defense[1] because the amount of money in the car tended to show that he was a drug seller, not a drug user, even though the prosecutors knew the money came from an earlier grocery store robbery. The amended petition further claimed that petitioner's trial counsel provided ineffective assistance by:

1) failing to offer proof of mitigating circumstances during the penalty phase of the murder trial; First Post-Conviction Petition, ¶ 11(a), Adden. 2, Doc. 1 at 51;

2) failing to make a closing argument during the penalty phase of the murder trial; First Post-Conviction Petition, ¶ 11(a), Adden. 2, Doc. 1 at 51;

3) failing to advise Cone regarding whether any privilege protected statements he made during examinations by Dr. Bursten, a state psychiatrist; First Post-Conviction Petition, ¶ 11(e), Adden. 2, Doc. 1 at 52;

4) failing to adequately investigate Cone's background and personal and medical history for mitigating evidence; First Post-Conviction Petition, ¶ 11(d), Adden. 2, Doc. 1 at 52;

5) failing to adequately advise Cone regarding his decision not to testify at either the guilt or penalty phase of the trial; First Post-Conviction Petition, ¶ 11(c), Adden. 2, Doc. 1 at 51.

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[1] Cone's defense was "amphetamine psychosis".

The state court held a hearing, and on September 19, 1986, denied Cone's petition. *See* Adden. 2, Doc. 1 at 105. Cone then appealed to the Tennessee Court of Criminal Appeals, claiming, *inter alia*, that counsel provided ineffective assistance:

1) by failing to offer proof of mitigating circumstances during the penalty phase of the murder trial; First Post-Conviction Petition Appellate Brief, ¶ II(c)4, Adden. 2, Doc. 2 at 26;

2) by failing to make a closing argument during the penalty phase of the murder trial; First Post-Conviction Petition Appellate Brief, ¶ II(c)5, Adden. 2, Doc. 2 at 28; and

3) by failing to conduct adequate cross-examination of the State's expert witnesses during the guilt phase of the murder trial; First Post-Conviction Petition Appellate Brief, ¶ II(c)3, Adden. 2, Doc. 2 at 25.

He also raised the claim that the prosecutors engaged in misconduct during the closing arguments of the guilt phase by arguing that jurors should reject Cone's drug-user defense because the amount of money in the car tended to show that he was a drug seller, not a drug user. First Post-Conviction Petition Appellate Brief, ¶ I, Adden. 2, Doc. 2 at 12.

On November 4, 1987, the Court of Criminal Appeals rejected these claims and affirmed. Adden. 2, Doc. 4. On December 21, 1987, Petitioner, through counsel, sought permission to appeal to the Tennessee Supreme Court, raising only the claims of prosecutorial misconduct, and if ineffective assistance based on counsel's failure to present proof of mitigation and failure to make a closing

argument during the penalty phase of the murder trial. Adden. 2, Doc. 5. On March 14, 1988, the Tennessee Supreme Court denied permission to appeal. Adden. 2, Doc. 7.

D. *State Collateral Proceedings – Second Petition*

On June 15, 1989, Cone filed, *pro se*, a second state post-conviction petition. On June 22, 1989, Cone filed a *pro se* amended petition. The trial court dismissed the petition as barred by the successive petition restrictions of Tennessee's post-conviction statute. On May 15, 1991, the Court of Criminal Appeals reversed, however, and remanded to permit Cone an opportunity to rebut the presumption of waiver. Adden. 3, Doc. 4.

On August 13, 1993, Cone's post-conviction counsel filed a second amended petition raising 35 claims of ineffective assistance of counsel.[2] On October 5, 1993, counsel filed a third amended petition, raising claims which were numbered 41 through 52. Claim 41 contended that the State had withheld exculpatory evidence tending to prove that Cone did suffer from drug-induced psychosis. Claim 44 contended that Cone's trial counsel provided ineffective assistance by failing to offer any proof of mitigating circumstances during the sentencing hearing. Claim 47 contended that the trial court violated Cone's Sixth Amendment rights by refusing to permit him to sit at counsel table with his attorney during trial.

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[2] A table comparing the ineffective assistance claims raised in Cone's post-conviction petition and this federal petition is attached as an Exhibit to this order.

Claim 48 contended that counsel provided ineffective assistance by improperly cross-examining the state's medical expert witnesses, and that Cone had been denied exculpatory evidence that would have enabled counsel to impeach their testimony. Claim 51 contended that death by electrocution amounts to cruel and unusual punishment in violation of the Eighth Amendment. On November 12, 1993, counsel filed a fourth amended petition raising no new actual claims, but arguing that the claims already presented in that proceeding were not barred by the waiver provisions of Tenn. Code Ann. § 40-30-112(b).

On April 24, 1994, the state trial court dismissed the petition under Tenn. Code Ann. § 40-30-112(b), holding that all grounds raised in the amended petition were barred as either previously determined or waived. Adden. 4, Doc. 1 at 230. On March 22, 1995, the Tennessee Court of Criminal Appeals affirmed. *Id.*, Doc. 5. On March 4, 1996, the Tennessee Supreme Court denied Cone's application for permission to appeal. *Id.*, Doc. 11.

Cone then filed a motion for rehearing, contending that the 1992 decision of *Capital Case Resource Center v. Woodall*, No. 01A01-9104-CH-00150, 1992 WL 12217, (Tenn. App. Jan. 29, 1992), had opened access to previously unavailable records from the prosecutor's file. *Id.*, Doc. 12. Cone argued under *Caldwell v. State*, 1996 WL 74160 (Tenn. Feb. 20, 1996), that claims only ascertainable after the *Capital Case Resource Center* holding constituted "late-arising" claims under state law. Cone argued that he should be permitted to have these claims considered on the merits. In his motion for rehearing, Cone also argued that his claims that depended on the hiring of expert witnesses and investigative services should also not be

deemed waived, because the Tennessee Supreme Court decision enunciating a procedure for obtaining such services during a post-conviction proceeding was not decided until 1995. *Owens v. State*, 908 S.W.2d 923 (Tenn. 1995). On May 6, 1996, the Tennessee Supreme Court denied the motion for rehearing. Adden. 4, Doc. 13. On October 15, 1996, the United States Supreme Court denied Cone's petition for certiorari.

E. *Federal Court Habeas Petition*

Petitioner then filed a motion in the United States District Court for the Middle District of Tennessee to stay his execution pending appointment of counsel and the filing of this federal habeas petition. The Middle District Court transferred the case to this court, which granted the stay, appointed counsel, and permitted the filing of this petition.

III. CLAIMS FILED IN THIS PETITION

This petition asserts numerous grounds for relief. This order is concerned only with the claims on which Cone seeks an evidentiary hearing. Cone's motion seeks an evidentiary hearing on claims numbered 39, 40, 41, 61, and 65 in his habeas petition. The state has opposed this motion contending both that the claims do not merit a hearing under § 2254, and that the claims are mostly barred by Cone's procedural default. Cone contends that the claims are not procedurally defaulted.

A. *Law Governing Procedural Default*

Twenty-eight U.S.C. § 2254(b) states, in pertinent part:

> (b) (1) An application for a writ of habeas corpus on behalf of a person in custody pursuant to the judgment of a State court shall not be granted unless it appears that –
>
> (A) the applicant has exhausted the remedies available in the courts of the State; or
>
> (B) (i) there is an absence of available State corrective process; or
>
> (ii) circumstances exist that render such process ineffective to protect the rights of the applicant.
>
> (2) an application for a writ of habeas corpus may be denied on the merits, notwithstanding the failure of the applicant to exhaust the remedies available in the courts of the State.[3]

Thus, a habeas petitioner must first exhaust available state remedies before requesting relief under § 2254. *See, e.g., Granberry v. Greer*, 481 U.S. 129 (1987); *Rose v. Lundy*, 455 U.S. 509 (1982). *See also* Rule 4, Rules Governing Section 2254 Cases in the United States District Courts. A petitioner has failed to exhaust his available state remedies if he has the opportunity to raise his claim by any available state procedure. *Preiser v. Rodriguez*, 411 U.S. 475, 477, 489-90 (1973).

[3] The Antiterrorism and Effective Death Penalty Act of 1996, Pub. L. No. 104-132, 110 Stat. 1214 (Apr. 24, 1996) (codified, *inter alia*, at 28 U.S.C. § 2244 et seq.) ("AEDPA"), substantially revised the procedural and substantive standards by which state prisoners can seek habeas relief from the federal courts. The quotation of 28 U.S.C. § 2254(b) is from the revised, post-AEDPA version of the subsection. For purposes of procedural default analysis, the changes to § 2254(b) are not significant.

To exhaust these state remedies, the applicant must have presented the very issue on which he seeks relief from the federal courts to the courts of the state that he claims is wrongfully confining him. *Picard v. Connor*, 404 U.S. 270, 275-76 (1971); *Rust v. Zent*, 17 F.3d 155, 160 (6th Cir. 1994). "[A] claim for relief in habeas corpus must include reference to a specific federal constitutional guarantee, as well as a statement of the facts which entitle the petitioner to relief." *Gray v. Netherland*, 116 S. Ct. 2074, 2081 (1996) (citing *Picard*, 404 U.S. at 271). " '[T]he substance of a federal habeas corpus claim must first be presented to the state courts.' " *Gray*, 116 S. Ct. at 2081 (quoting *Picard*, 404 U.S. at 278). A habeas petitioner does not satisfy the exhaustion requirement of 28 U.S.C. § 2254(b) "by presenting the state courts only with the facts necessary to state a claim for relief." *Gray*, 116 S. Ct. at 2081.

Conversely, "[i]t is not enough to make a general appeal to a constitutional guarantee as broad as due process to present the 'substance' of such a claim to a state court." *Id.* When a petitioner raises different factual issues under the same legal theory, he is required to present each factual claim to the highest state court in order to exhaust his state remedies. *See Pillette v. Foltz*, 824 F.2d 494, 497-98 (6th Cir. 1987). He has not exhausted his state remedies if he has merely presented a particular

legal theory to the courts, without presenting each factual claim. *Id.* The claims must be presented to the state courts as a matter of federal law. "It is not enough that all the facts necessary to support the federal claim were before the state courts, or that a somewhat similar state-law claim was made." *Anderson v. Harless*, 459 U.S. 4, 6 (1982). *Cf. Duncan v. Henry*, 115 S. Ct. 887, 888 (1995) ("If a habeas petitioner wishes to claim that an evidentiary ruling at a state court trial denied him the due process of law guaranteed by the Fourteenth Amendment, he must say so, not only in federal court, but in state court."). *Cf. Gray*, 116 S. Ct. at 2081.

Moreover, the state court must address the merits of those claims. *Coleman v. Thompson*, 501 U.S. 722, 734-35 (1991). If the state court decides those claims on an adequate and independent state ground, such as a procedural rule prohibiting the state court from reaching the merits of the constitutional claim, the petitioner is barred by this procedural default from seeking federal habeas review, unless he can show cause and prejudice for the default. *See Wainwright v. Sykes*, 433 U.S. 72, 87-88 (1977).

When a petitioner's claims have never been actually presented to the state courts, but a state procedural rule prohibits the state court from extending further consideration to them, the claims are deemed exhausted, but procedurally barred. *Coleman*, 501 U.S. at 752-53; *Teague v. Lane*, 489 U.S. 288, 297-99 (1989); *Wainwright*, 433 U.S. at 87-88; *Rust*, 17 F.3d at 160.

A petitioner confronted with either variety of procedural default must show cause and prejudice for the default in order to obtain federal court review of his

claim. *Teague*, 489 U.S. at 297-99; *Wainwright*, 433 U.S. at 87-88. Cause for a procedural default depends on some "objective factor external to the defense" that interfered with the petitioner's efforts to comply with the procedural rule. *Coleman*, 501 U.S. at 752-53; *Murray v. Carrier*, 477 U.S. 478, 488 (1986).

A petitioner may avoid the procedural bar, and the necessity of showing cause and prejudice, by demonstrating "that failure to consider the claims will result in a fundamental miscarriage of justice." *Coleman*, 501 U.S. at 750. The petitioner must show that "a constitutional violation has probably resulted in the conviction of one who is actually innocent of the crime." *Schlup v. Delo*, 115 S. Ct. 851, 865-66 (1995) (quoting *Murray*, 477 U.S. at 496). "To establish the requisite probability, the petitioner must show that it is more likely than not that no reasonable juror would have convicted him in light of the new evidence." *Schlup*, 115 S. Ct. at 867.

B. *Analysis of Petitioner's Claims*

In this case, analyzing procedural default has been made more difficult by the petitioner's confusing presentation of his claims, and the respondent's failure to articulate which specific claims are subject to which specific procedural default. Paragraphs 39, 40, 41, 61, and 65 of Cone's petition contain a total of fifty-one claims in subparagraphs, (39(a-k) and 40(a-rr)), upon each of which

petitioner claims entitlement to an evidentiary hearing.[4] Of these fifty-one claims, however, only four are both properly exhausted and not the subject of some procedural default during the state court proceedings. Cone's contention in claim 40(h), repeated at 40(qq), that his attorney provided ineffective assistance when he failed to present any proof in mitigation of the death penalty was decided adversely to Cone during the first

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[4] Cone's counsel divided the petition into paragraphs and subparagraphs, not all of which actually contain different claims. Subparagraph 39(b) and (c) simply consist of argument regarding the exculpatory effect of the eight allegedly exculpatory documents listed in subparagraph 39(a). Subparagraph 39(d) is an introduction to a *Brady v. Maryland*, 373 U.S. 83 (1963), claim based on the ten documents listed in subparagraph 39(e). Subparagraphs 39(f)-(h) actually enunciate the *Brady* claim based on those documents. Subparagraph 39(i) recites six documents which Cone's counsel assert reflect on the veracity of prosecution rebuttal-witness Ilene Blankman. Subparagraph 39(j) asserts a *Brady* claim based on evidence that money recovered from Cone's car was returned to the grocery store. Subparagraph 39(k) generally reasserts all of the previously asserted *Brady* claims. The Court construes these as four different claims:

1) a *Brady* claim that the prosecutor failed to reveal documents in the prosecutor's filed related to Cone's drug use;
2) a *Brady* claim based on the prosecution's failure to reveal documents in the FBI's possession related to Cone's drug use;
3) a *Brady* claim based on the prosecution's failure to reveal documents related to Blankman's testimony; and
4) a *Brady* claim based on the prosecution's failure to reveal that money seized from Cone's car was returned to the grocery store.

state post-conviction proceeding. Claim 40(i), that his attorney provided ineffective assistance by not making any closing argument at the penalty phase of the trial, was likewise decided against Cone on the merits during that same proceeding. Claim 39(j) duplicates claim 41. Cone contends that he was deprived of due process by the prosecutor's guilt-phase closing argument that jurors should reject Cone's drug-user defense because the amount of money found in Cone's car tended to show that he was a drug seller, not a drug user, even though the prosecutors knew the money came from an earlier grocery store robbery. This claim was decided on the merits adversely to petitioner during the first post-conviction proceeding, and was included in Cone's application of permission to appeal to the Supreme Court. Finally, claim 61, that electrocution is cruel and unusual, was decided adversely to Cone on his direct appeal from his conviction and sentence.

The remaining claims have never been presented on the merits to the Tennessee Supreme Court. Particular mention should be made of several claims. Cone's ineffective assistance claims 40(h), 40(j) through 40(gg), and 40(qq) are simply verbatim repetitions of claims he originally stated in the *pro se* state petition he filed on June 15, 1989, amended on June 22, 1989, and amended again on August 13, 1993. *See* Adden. 3, Doc. 1, at 28-31, 38-40; Adden. 4, Doc. 1, at 67-71.

Claim 40(g), that counsel provided ineffective assistance by failing to introduce evidence that Cone had won a Bronze Star in Vietnam, is frivolous in light of Cone's submission, during the trial phase of the first post-conviction proceeding, of proposed findings of fact asserting

that counsel did in fact obtain admission of this evidence. Adden. 2, Doc. 1 at 97. This evidence was admitted during the penalty phase of Cone's trial. Trial Trans. at 2123. Accordingly, this claim is DISMISSED.

Claim 40(r), that Cone's trial counsel had inadequate experience and expertise to handle a death penalty case is not an assertion of a Sixth Amendment violation. A Sixth Amendment claim requires a showing of deficient performance by counsel, and prejudice to the defendant from the deficient performance. *Strickland v. Washington*, 466 U.S. 668, 694 (1984). While counsel's experience is evidence on which a court might rely in evaluating counsel's performance, it is not in itself a basis for relief. Accordingly, this claim is DISMISSED.

Claim 40(x), that Cone's trial counsel provided inadequate advice regarding whether Cone should testify during the guilt and penalty phases of the trial, was decided adversely to Cone on the merits by the Tennessee Court of Criminal Appeals during the first post-conviction proceeding. Adden. 2, Doc. 4 at 8. Cone did not, however, present this claim to the Tennessee Supreme Court in his application for permission to appeal. Adden. 2, Doc. 5 at 2. He did later raise it as claim 15(n) in the August 1993 petition that was dismissed as procedurally barred. Adden. 3, Doc. 1 at 39.

Claims 40(a), (b), (c), (d), (e), and (f), all relating to trial counsel's alleged ineffectiveness in developing and presenting evidence regarding Cone's mental health and drug use, have never been presented to the state courts. Claim 40(mm), that counsel failed to conduct adequate cross-examination of prosecution witnesses has never

been presented to the state courts. Likewise, claim 40(oo), that counsel inadequately investigated and presented evidence regarding Cone's potential for living a worthwhile life in prison as a means of persuading the jury of the existence of a mitigating circumstances, [sic] has never been presented to the state courts.[5]

Claim 40(pp), that counsel inadequately cross-examined the state's medical experts, and that the State withheld exculpatory evidence with which to impeach them, was held waived on direct appeal of the first post-conviction petition. Adden. 2, Doc. 4 at 6. Petitioner did not include this claim in his application for permission to appeal from that ruling. He did later raise it as claim 15(af) in the August 1993 petition that was dismissed as procedurally barred. Adden. 4, Doc. 1 at 70.

Of the eleven *Brady* claims, only two, claims 39(a) and (i), were even arguably presented to the state post-conviction trial court. Claim 39(a) was raised as claim 20(d) in the June 22, 1989 *pro se* petition. Claim 39(i) was raised in claim 35 in the August 1993 petition. The state court held both claims waived and that decision was affirmed on appeal.

Cone now argues that his procedural defaults should be excused. This argument essentially reduces to two parts: 1) that the 1994 holding by the state post-conviction court that the ineffective assistance grounds were

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[5] Cone has presented the state courts with similar claim 40(ff), that his counsel provided ineffective assistance by failing to request an instruction on this issue. *See* Adden. 4, Doc. 1 at 70. This claim was held procedurally barred under Tenn. Code Ann. § 40-30-112.

"previously determined" constitutes a ruling on the merits of all of his ineffective assistance claims; and 2) that the inadequacy of the state post-conviction procedures precluded him from raising the claims, especially the *Brady* claims. Neither argument has merit.

Cone argues that since he presented these ineffective assistance claims to the state court, but through no fault of his own did not receive a full and fair hearing, he is not barred from presenting them in this petition and is entitled to an evidentiary hearing. This argument misconstrues both the applicable Tennessee law and the standard governing federal habeas review of procedurally defaulted claims.

The State post-conviction trial court set forth the following analysis in its 1994 ruling:

> The Court finds, after a careful and thorough review based upon the entire record including the direct appeal and the first Petition for Post Conviction Relief and the pleadings, affidavits, and briefs of respective counsel[,] that the Second Petition for Post Conviction Relief as amended must be dismissed because the grounds stated in the Petition as amended have been either previously determined or presumptively waived as a matter of law.
>
> The petition fails to state any new grounds that have not already been decided on direct appeal or the First Petition for Post-Conviction Relief. A distinction should be noted between a "ground" and a "factual claim" to support the ground. T.C.A. 40-30-105 states, to wit:

> "Grounds for Relief – Relief under this chapter shall be granted when the conviction is void or voidable because of the abridgement in any way of any right guaranteed by the constitution of this state or the constitution of the United States, including a right that was not recognized as existing at the time of the trial if either constitution requires retrospective application of that right."
>
> T.C.A. 40-30-111 states, to wit: "Scope of hearings" – the scope of the hearing *shall extend to all grounds* the petitioner may have, *except those grounds which the court finds shall be excluded because they have been waived or previously determined,* as herein defined." (Emphasis added).
>
> It is, then, clear that a "ground" is a constitutional right. "Facts" are alleged by the petitioner to support the "grounds". Facts that are merely cumulative or conclusory in nature are non-supportive and will be disregarded.
>
> In the Second Petition sub judice the petitioner employs the word "claim" to describe either a ground or a fact in support of the ground. This is somewhat confusing[,] but obviously an alleged fact is not a constitutional right, and there should be a distinction made in the manner in which the petition is drawn.

Adden. 4, Doc. 1, at 232.

The order then refers to former Tenn. Code Ann. § 40-30-112, which stated:

> When ground for relief is "previously determined" or "waived."

> (a) A ground for relief is "previously determined" if a court of competent jurisdiction has ruled on the merits after a full and fair hearing.
>
> (b)(1) A ground for relief is "waived" if the petitioner knowingly and understandingly failed to present it for determination in any proceeding before a court of competent jurisdiction in which the ground could have been presented.
>
> (b)(2) There is a rebuttable presumption that a ground for relief not raised in any such proceeding which was held was waived.

Tenn. Code Ann. § 40-30-112 (1990). The court then held:

> Ineffective assistance of counsel. This ground was previously denied on direct appeal and the First Petition for Post Conviction Relief. The claimed factual allegations herein are merely cumulative or have been presumptively waived for failure to present upon direct appeal or the First Petition For Post Conviction Relief.

Adden. 4, Doc. 1, at 233. This determination was explicitly affirmed by the Court of Criminal Appeals.

> In his first post-conviction petition, the appellant presented five factual allegations to support his constitutional claim of ineffective assistance of counsel. His second petition, on the other hand, listed thirty-five separate deficiencies in his trial counsel's performance. The trial court found that ineffective assistance of counsel is a single "ground for relief" as contemplated by the statute, *see* T.C.A. § 40-30-111, and that the issue of ineffective assistance of counsel was therefore previously determined. We agree with the trial court. A petitioner may not relitigate a

> previously determined issue by presenting additional factual allegations. We should not encourage post-conviction petitioners to invent new facts to revive an old issue which was unfavorably decided, nor should we allow petitioners to "sandbag" by reserving factual claims until their second or third petition.

Cone v. State, 927 S.W.2d 579, Adden. 4, Doc. 5, at 5.

Cone argues that this determination that the ineffective assistance ground was previously determined is not a finding of procedural default. This argument is mistaken. From the above decisions, it is clear that when a ground for relief, such a ineffective assistance of counsel, is raised in a Tennessee post-conviction petition, subsequent consideration of factual allegations supporting that ground are barred by the prior presentation of that ground. Cone's argument to the contrary is based on his mistakenly equating the federal habeas term of art "claim" with the Tennessee phrase "ground for relief."

Under § 2254(b), exhaustion is required of every single factual aspect of a claim, not merely of generalized assertions of constitutional error. *Pillette*, 824 F.2d at 497-98. The state court refused to consider the merits of the factual allegations supporting any further Sixth Amendment ineffective assistance ground in the 1993 petition because petitioner had already had an opportunity to present his contention, (whether described as a "claim" or as a "ground for relief"), that his attorney provided ineffective assistance.

By refusing to consider the later factual allegations on the merits, the state courts erected a procedural bar in this federal habeas proceeding, not to every possible

claim of ineffective assistance under the Sixth Amendment, but to the specific claims based on those particular factual allegations. That the state court does not use terms that parallel federal habeas analysis in describing the "claims" asserted in state post-conviction proceedings is irrelevant.[6]

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[6] In an analogous context, the Supreme Court, discussing the state court's obligation to state clearly when it is denying a claim on procedural grounds, noted that:

> [w]e encourage state courts to express plainly, in every decision potentially subject to federal review, the grounds upon which their judgments rest, but we will not impose on state courts the responsibility for using particular language in every case in which a state prisoner presents a federal claim – every state appeal, every denial of state collateral review – in order that federal courts might not be bothered with reviewing state law and the record in the case.

Coleman, 501 U.S. at 739. Similarly, the Fifth Circuit has opined in upholding a procedural default defense:

> [w]e decline today to impose on the [Texas Court of Criminal Appeals] the need to pronounce some shibboleth or incant some magic words guaranteeing safe passage from a holding based on a state procedural bar to an alternative holding on the merits without infecting the opinion with "excuse" and thus dooming it to inadequacy. We likewise decline Amos' invitation to hold that a court's particular choice of words or phrases to reflect the shifting of its focus from a holding grounded on independent state law to an alternative holding based on federal law is dispositive when determining whether that state-law ground is adequate.

Amos v. Scott, 61 F.3d 333, 341 (5th Cir.), *cert. denied*, 116 S. Ct. 557 (1995).

Petitioner argues that by declaring the ground of ineffective assistance "previously determined" the state courts have admitted that his Sixth Amendment claims have been decided on the merits. Petitioner reasons that since he cannot be procedurally barred from raising claims decided on the merits, the state court has decided all of his ineffective assistance *claims* on the merits for purposes of federal habeas review.

The difficulty with petitioner's argument is that it is clear that almost all of the specific Sixth Amendment claims asserted in this petition were not addressed on the merits by the state courts. It is clear that the state courts interpreted the "previously determined" language as a type of procedural bar – a legal determination that certain claims resting on specific factual support should have been presented at the time the petitioner raised similar claims within a broad ground implicating the same constitutional right. Accordingly, for federal habeas purposes, the "previously determined" category is a type of procedural default as to those claims.

Cone may contend that the state courts should describe all such procedural defaults as a type of waiver. This argument, however, merely amounts to an assertion that the state courts have misapplied state law in creating a procedural barrier to considering the merits of those claims. A federal court cannot refuse to honor an adequate and independent state ruling because it disagrees with the state court's interpretation of state law. Moreover, this argument merely amounts to a disagreement over the terminology used by the state court. Petitioner's attempt to recast state court terminology to make his

claims reviewable misconstrues both state and federal law.

Cone argues also that the Tennessee Supreme Court decision in *House v. State*, 911 S.W.2d 705, 713-14 (Tenn. 1995), issued after Judge Williams denied Cone's second amended state petition, changed the standard for waiver in Tennessee. According to Cone, prior to *House*, Tennessee courts applied a subjective standard for waiver that required a personally knowing and voluntary decision by the prisoner to waive the claim.[7] According to Cone, *House* changed this to find waiver based merely on non-presentation of a claim. This contention misconstrues both prior Tennessee caselaw and *House*.

House simply definitively resolved the issue of whether the phrase "knowingly and understandingly" enunciated a subjective test based only on the petitioner's personal awareness, or an objective test based on what his attorney reasonably should have known. 705 S.W.2d at 713-14. According to the Tennesse [sic] Supreme Court, "[w]aiver in the post-conviction context is to be determined by an objective standard under which a petitioner is bound by the action or inaction of his attorney." 705 S.W.2d at 714. Moreover, it is clear from *House* that the Supreme Court's decision was shaped by the existing Tennessee caselaw, and merely clarified that body of law. Indeed, the *House* decision parallels the result in Cone's state court cases.

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[7] Memorandum in Support of Petitioner's Motion for an Evidentiary Hearing, at 9 (citing *Wooden v. State*, 898 S.W.2d 752, 754 (Tenn. Crim. App. 1994)).

Furthermore, petitioner's argument that prior caselaw enunciated a subjective standard both conflicts with *House*'s analysis of that body of law and is not supported by the single case on which he relies. *See Wooden v. State*, 898 S.W.2d 752, 754 (Tenn. Crim. App. 1994)). In 1992, Wooden, a Tennessee prisoner, filed a third post-conviction petition seeking to invalidate his 1982 rape conviction based on allegedly exculpatory evidence in police files that were unavailable to him until after the decision in *Freeman v. Jeffcoat*, No. 01A01-9103-CV-00086, 1991 WL 165802 (Tenn. App. Aug. 30, 1991), *perm. app. denied*, (Tenn. 1992), made the Tennessee Public Records Law applicable to certain police records. The trial court dismissed Wooden's petition as barred by the former three year statute of limitations on Tennessee post-conviction petitions. *See* Tenn. Code Ann. § 40-30-102 (1990). The appellate court, in *dicta*, observed that "it is doubtful that the defense of waiver would apply" and then remanded the case because the state conceded that the prisoner was entitled to a hearing on whether the statute of limitations would bar claims based on allegedly exculpatory evidence released under the public records law. This case, therefore, does not stand for the proposition that Tennessee courts had adopted and uniformly applied a subjective test for waiver prior to *House*.

Moreover, *Wooden* was not even decided until after Cone filed his various state court petitions. Accordingly, his argument that his reliance on an existing body of state law in filing his petitions should excuse his waiver of his various claims is without merit. His argument that *House* is a retroactive change in Tennessee law is likewise unavailing. In essence, petitioner merely disagrees with

the way in which the Tennessee courts have applied Tennessee's post-conviction procedures to bar review of the merits of the most of his claims. This does not establish that the procedural bar does not exist.

Petitioner's arguments in support of overcoming this procedural bar closely resemble his arguments against its existence. With regard to his ineffective assistance claims, petitioner had the opportunity to raise each of the claims at issue when he first filed a post-conviction petition. Each of the asserted factual claims related to trial counsel's performance were ascertainable from the record when Cone's attorney filed his first post-conviction petition. Cone offers no real excuse for failing to raise those claims in his first post-conviction petition, apart from a rather conclusory argument that his post-conviction counsel was ineffective. It is clear that there is not right to effective assistance of counsel in a state collateral proceeding. *Coleman*, 501 U.S. at 752. Accordingly, an error committed by petitioner's post-conviction counsel is not attributable to the state so as to constitute cause for a default. Rather, according to *Coleman*, the petitioner in a state collateral proceeding "must bear the risk of attorney error that results in procedural default." 501 U.S. at 752-53. Thus, Cone's ineffective assistance claims, except for the [sic] those presented to the Tennessee Supreme Court in the application for permission to appeal the denial of his first post-conviction petition, are barred here.

As to the *Brady* claims, Cone also attempts to argue that those claims were improperly held waived by the state courts. The only claims that were presented to the state courts, however, were conclusory assertions that the

state had generally withheld exculpatory documents, and had withheld documents that might have been useful to impeach prosecution rebuttal witness Ilene Blankman. *See* June 22, 1989 Petition at ¶ 20(d), Adden. 3, Doc. 1 at 43; Aug. 13, 1993 Petition at ¶ 35, Adden. 4, Doc. 1 at 81. Of the eleven instant *Brady* claims on which Cone asserts entitlement to an evidentiary hearing, only claim 39(i) was specifically within the scope of the post-conviction proceeding claims. The other claims, having never been presented to the state courts, are now barred by the state post-conviction statute of limitations.[8] *See Hannah v. Conley*, 49 F.3d 1193, 1194-95 (6th Cir. 1995).

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[8] Tennessee law previously set a three-year statute of limitations for filing post-conviction petitions. *See* Tenn. Code Ann. § 40-30-102 (1990). The period of limitations for Cone's conviction began on the statute of limitations' effective date of July 1, 1986, and expired on July 1, 1989. *State v. Masucci*, 754 S.W.2d 668 (Tenn. Crim. App. 1988) (original statute of limitations began running on effective date of act for all convictions that were final before that date).

In 1995, Tennessee repealed the previous post-conviction statute and replaced it with a completely new statute containing a one-year limitations period. Tenn. Code Ann. § 40-30-202(a) (Supp. 1995). The new statute was effective May 10, 1995. *See* 1995 Tenn. Pub. Acts Ch. 207 § 3, as amended by 1996 Tenn. Pub. Acts ch. 995 § 10 (May 13, 1996). The Tennessee Supreme Court has recently held that the amended statute does not provide a new "one-year window" from the effective date of the act in which every defendant could file a petition. Rather, if the petition would have been barred by the three-year statute provided under the previous act, it is still barred by the 1995 amendments. *See Carter v. State*, 952 S.W.2d 417, 420 (Tenn. 1997). Cone filed his second state post-conviction petition on June 16, 1989, fourteen days before the post-conviction statute of limitations expired. The statute was tolled during the time the

It appears that petitioner contends that he can demonstrate cause for this procedural default because he did not have access to the documents supporting the defaulted claims until he utilized federal discovery procedures in this habeas case. This contention is without merit. The petition admits that the documents from claims 39(a), 39(i), and 39(j) were all made available to Cone during the second post-conviction proceeding. *See* Adden. 4, Doc. 1 at 104 (State's response to request for discovery during post-conviction proceedings, stating "The original file has already been made available to counsel for petitioner."). Moreover, the petitioner admits that these documents were available during the second proceeding. *See* Petition at 13, n.7 (noting 1992 change to Tennessee public records law making records available).

The argument that the state's post-conviction procedures were inadequate to provide Cone with the opportunity to present those claims also ignores Cone's own admission in his motion for rehearing before the Tennessee Supreme Court in his second post-conviction proceeding that the *Brady* evidence has been available to him since 1992. *See* Adden. 4, Doc. 12 at 1-2. His amended post-conviction petitions were not filed until August of 1993. Adden 4, Doc. 1 at 64. Yet, of the specific *Brady* claims raised in this case, only one was ever even arguably raised before the state courts. Cone's state post-conviction counsel apparently never utilized the Tennessee Public Records Act procedures to obtain the information,

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second petition was pending, and expired, at the latest, fourteen days after the March 4, 1996 denial of Cone's petition for rehearing in the Tennessee Supreme Court.

or did not consider the evidence to be of value if they did, in fact, obtain it. As discussed above, my mistakes made by Cone's state post-conviction counsel in handling that state petition cannot constitute cause under *Coleman*. By failing to present claims 39(a) and 39(j) to the state court, Cone procedurally defaulted those claims. He cannot demonstrate cause for this default.

Claim 35 in Cone's amended second post-conviction petition was held waived by the state court. This claim arguably parallels claim 39(i) in this petition. Cone asks this court to declare that the claim was not actually waived because he had no opportunity to uncover the facts supporting the claim during the *first* post-conviction petition. This contention is without merit, however, because of the conclusory manner in which Cone asserted the claim during the second post-conviction petition. Despite the admitted availability of the materials from the prosecutor's file, Cone never relied on any specific document, and never made any specific *Brady* claim before the state court. He therefore failed to establish any basis for rebutting the statutory presumption of waiver of this claim. Accordingly, this claim is also procedurally defaulted, and Cone has failed to establish cause for this default.

Moreover, even if Cone's argument amounted to cause for this default, he cannot establish any prejudice based on the withholding of the information related to Blankman's testimony. These six items of information were:

1) A letter from the prosecutor to Blankman confirming their earlier conversation and providing her statement;

2) A letter from the prosecutor to Blankman confirming her court appearance and again providing the statement;

3) An F.B.I. report describing an event *after* the trial in which Blankman, while eating at a public restaurant, did not respond when someone accused her of lying;

4) The presence in the F.B.I. file of a copy of a report by Dr. Jonathan Lipman;

5) The prosecutor's notes of a pre-trial interview with Blankman. These notes allegedly do not contain any reference to the statements Blankman afterwards made during her rebuttal testimony about her observations of Cone;

6) A letter from the prosecutors thanking Blankman for her testimony.

Petition at 16-17. None of these items fall within *Brady*, which requires the government to disclose to a criminal defendant evidence that is both favorable and material to guilt or punishment. *See United States v. Presser*, 844 F.2d 1275, 1281 (6th Cir. 1988) (quoting *Pennsylvania v. Ritchie*, 480 U.S. 39, 57 (1987)). *See also United States v. Bagley*, 473 U.S. 667, 682 (1985); *United States v. Agurs*, 427 U.S. 97, (1976).

Items 3 and 6 concern post-trial events, and do not tend to prove any fact that would establish Cone's innocence. Items 1 and 2 also do not tend to prove any fact that is both favorable to Cone and material to his guilt or punishment. Item 5 consists not of information, but an absence of information. Cone attempts to turn this void into positive exculpatory evidence. This contention is

frivolous. Information is material "only if there is a reasonable probability that, had the evidence been disclosed to the defense, the result of the proceeding would have been different. A 'reasonable probability' is a probability sufficient to undermine confidence in the outcome." *Bagley*, 473 U.S. at 682. The question is not whether the defendant would more likely than not have received a different verdict with the evidence, but whether in its absence he received a fair trial, understood as a trial resulting in a verdict worthy of confidence. A "reasonable probability" of a different result is shown when the Government's evidentiary suppression "undermines confidence in the outcome of the trial." *Id.* at 678. That Blankman's in-court testimony is absent from the prosecutor's pre-trial notes does not undermine confidence in the outcome of petitioner's trial, thus those notes are not material.

Moreover, to the extent that this document would have been useful to establish that Blankman had not previously told anyone the facts to which she testified at trial, this evidence was admitted at trial through the cross-examination of Blankman and through the cross-examination of officer Roby. *See* Trial Transcript at 1896-1905, 1943-45. This document would not have resulted in any appreciable further impeachment of Blankman's testimony and was, therefore, not material to Cone's guilt or punishment under *Bagley* and *Brady*. As this document was not material, Cone cannot demonstrate the prejudice necessary to overcome a procedural default of this claim. Alternatively, under § 2254(b)(2), this claim is completely devoid of merit, regardless of issues of exhaustion or procedural default.

As to the fourth item, the presence in the F.B.I. file of Dr. Lipman's report is not only not exculpatory, but is not even probative of anything. Cone argues that the presence of Lipman's report:

> demonstrat[es] that both Ilene Blankman as well as F.B.I. agent Flynn, both of whom testified against Mr. Cone, had been informed about the evidence presented by the defense at trial and what they were specifically being called to rebut, thus demonstrating that such witnesses were not disinterested, truthful witnesses, but specifically collaborating with the prosecution to present facts against Mr. Cone.

Petition, ¶ 39(I)(iv) at 17. This claim is entirely speculative and does not establish that the prosecutors withheld exculpatory information from the defense. Dr. Lipman was one of the experts who testified for the defense. His report on Cone's condition would naturally appear in the F.B.I.'s file. Its presence does not tend to make it more likely that the prosecution engaged in misconduct with regard to Blankman's testimony. As noted, Cone's trial counsel subjected Blankman to searching cross-examination in an attempt to demonstrate that her rebuttal testimony was a last-minute fabrication. This claim is simply an attempt to create a claim where none exists.

The evidence of Cone's guilt was overwhelming, and the material evidence that he was acting under the influence of amphetamine psychosis was, and continues to be, virtually nonexistent.[9] The allegedly exculpatory information on which he relies would not have cast any doubt

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[9] In this regard, the court should mention briefly that the eight items of supposed *Brady* material on which Cone relies in

on the testimony of Blankman. As to this claim also, Cone cannot establish cause for his procedural default and cannot establish a constitutional violation, even apart from that default.

¶ 39(a) are not exculpatory either. These items consist primarily of copies of fugitive alerts provided to various law enforcement agencies throughout the country during the hunt for Cone. They mention that Cone was a "hearvy drug user". Cone argues that this contradicted prosecution witnesses who testified that they did not observe Cone use drugs, did not observe any needle tracks on his body, and observed that his behavior was inconsistent with a person under the influence of any drugs. Agent Flynn testified that Cone admitted to using cocaine, Dilaudid, and Demerol. Flynn did not testify that Cone said anything about amphetamine abuse. Given that the issue at trial was not whether Cone had ever abused any drugs (he clearly had), but whether he was out of his mind on amphetamines at the time of the murders, this evidence does not devastate the state's case or even credibly impeach the state's witnesses. Cone's claims in this regard are exaggerated and devoid of merit. To the extent that the alerts were remotely relevant, they might have tended to prove that the police were initially cautious regarding the characteristics of a person who had committed several heinous crimes. Apparently, Cone's father made mention to a police officer during the initial investigation of Cone's *prior* drug use. Seemingly out of an abundance of caution, the police included this possible characteristic in their alert. Clearly, the evidence as subsequently developed during the investigation established that Cone's drug use was irrelevant to his commission of these offenses. Furthermore, Cone's reliance on the number of such alerts is misplaced. The probative value of each of these irrelevant items is not increased by their accumulation. Finally, Cone cannot establish that these items are actually not provided to him during the original criminal proceedings because his trial counsel is deceased and his file is not available.

Claim 65 in Cone's habeas petition, regarding his presence at counsel table, is also defaulted. Cone does not offer a reason for his failure to raise this claim in his first *post-conviction* petition, nor any basis for avoiding a procedural default. Finally, with regard to all of the procedurally defaulted claims, Cone has not demonstrated that he is actually innocent, either of the original crimes of murder, or of the death penalty. He thus cannot obtain review of those defaulted claims.

The remaining claims are not procedurally defaulted, and were decided on the merits by the state courts. These claims bear repetition here:

1) 40(h) (also (qq)) – Cone's trial counsel provided ineffective assistance when he failed to present any proof in mitigation of the death penalty.

2) Claim 40(i) – Cone's trial counsel provided ineffective assistance by not making any closing argument at the penalty phase of the trial.

3) Claim 39(j) (also 41) – Cone was deprived of due process by the prosecutor's guilt-phase closing argument that jurors should reject his drug-user defense because the amount of money in the car tended to show that he was a drug seller, not a drug user, even though the prosecutors knew the money came from an earlier grocery store robbery.

4) Claim 61 – electrocution is cruel and unusual punishment.

Dealing with the last claim first, this claim is without merit and does not require an evidentiary hearing.

> Electrocution has never been found to be cruel and unusual punishment by any American court. *See, e.g., In re Kemmler,* 136 U.S. [436,] 443-44 [1890]; *Ingram v. Ault,* 50 F.3d 898 (11th Cir. 1995); *Felker v. Turpin,* 101 F.3d [95,] 97 [(11th Cir.), *cert. denied* 117 S. Ct. 450 (1996)]; *Porter [v. Wainwright],* 805 F.2d [930,] 943 n. 15 [(11th Cir. 1986), cert. denied, 482 U.S. 918, 107 S. Ct. 3195, 96 L.Ed.2d 682 (1987)]; *Glass v. Louisiana,* 471 U.S. 1080, 105 S. Ct. 2159, 85 L.Ed.2d 514 (1985) (Brennan, J., dissenting from denial of certiorari) ("such claims have uniformly and summarily been rejected"). No legislatively authorized method of execution in the United States is outlawed in any jurisdiction by any currently-effective court decision. [*Gomez v.*] *Fierro,* 117 S. Ct. [285,] 285 [(1986)]; *Rupe v. Wood,* 863 F. Supp. 1307 (W.D. Wash. 1994), *vacated as moot,* 93 F.3d 1434 (9th Cir. 1996).
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> The very practice of electrocution has been upheld by other courts within the past year, and there is no argument even plausible that there are differences in the level of "evolving decency" among the different circuits or states of the union, or over the last very few years.

In re Sapp, 118 F.3d 460, 464 (6th Cir.), *cert. denied* 117 S.Ct. 2536 (1997). *Accord, Louisiana ex rel. Francis v. Resweber,* 329 U.S. 459, 464 (1947) (holding that subjecting a convict to electrocution a second time after a first attempt at execution failed was not cruel and unusual punishment), *Williams v. Hopkins,* 130 F.3d 333, 337 (8th Cir. 1997) (following *Sapp* and rejecting § 1983 claim that electrocution is cruel and unusual punishment); *Ingram v. Ault,* 50 F.3d 898, 900 (11th Cir. 1995); *Johnson v. Kemp,* 759 F.2d 1503, 1510 (11th Cir. 1985) ("The contention that death by

electrocution violates the Eighth Amendment is frivolous."); *Sullivan v. Dugger*, 721 F.2d 719, 720 (11th Cir. 1983) (denying motion for a TRO alleging that "the carrying out of appellant's death sentence by means of electrocution is cruel and unusual punishment in violation of the Eighth and Fourteenth Amendments"); *Spinkellink v. Wainwright*, 578 F.2d 582, 616 (5th Cir. 1978) (following *Klemmer* and finding cruel and unusual punishment argument without merit).

In deciding whether a particular form of capital punishment is unconstitutionally cruel and unusual, the federal courts "look to objective factors to the maximum extent possible. Among these factors are statutes passed by society's elected representatives. We presume that a punishment selected by a democratically elected legislature is constitutionally valid." *Campbell v. Todd*, 18 F.3d 662, 682 (9th Cir.) (holding hanging not cruel and unusual), *rehearing en banc denied*, 20 F.3d 1050 (9th Cir.), *cert. denied*, 511 U.S. 1119 (1994). Given that the Tennessee legislature has declared electrocution to be the form of capital punishment in this state, that capital punishment is not, in and of itself, cruel and unusual, *Gregg v. Georgia*, 428 U.S. 153 (1976), that many other states also impose death by electrocution, and that no court has ever held electrocution inherently cruel and unusual, this claim is legally without merit.

Furthermore, the court has reviewed the scientific paper on which Cone relies, Exh. C to Memorandum in support of Petitioner's Motion for Evidentiary Hearing. This paper establishes that electrocution is painful. What the paper fails to mention, however, is any estimate of how long a person remains conscious and could actually

experience pain while being executed in an electric chair. The paper disputes, *Id.* at 30, the contention by the chair's manufacturer that unconsciousness generally occurs in 1/240th of a second, but does not attempt to provide a correct figure. Regardless of the intensity of the pain inflicted by electrocution, a duration of 1/240th of a second cannot be said to be cruel and unusual, and petitioner has not carried his burden to demonstrate that he will survive for any longer period of time.

Most importantly, § 2254(d) provides:

> (d) An application for a writ of habeas corpus on behalf of a person in custody pursuant to the judgment of a State court shall not be granted with respect to any claim that was adjudicated on the merits in State court proceedings unless the adjudication of the claim –
>
> (1) resulted in a decision that was contrary to, or involved an unreasonable application of, clearly established Federal law, as determined by the Supreme Court of the United States; or
>
> (2) resulted in a decision that was based on an unreasonable determination of the facts in light of the evidence presented in the State court proceeding.

Given the state of the law as discussed above, it cannot be said that the Tennessee Supreme Court's rejection of this claim on direct appellate review "involved an unreasonable application of clearly established Federal law." Accordingly, this claim is without merit. Petitioner's third claim is also without merit. Cone contends that he was

deprived of due process at the guilt phase by the prosecutor's argument that the jury should conclude that Cone was a drug seller instead of a user based on the money found in his vehicle, even though the prosecutor knew the money originated from Cone's robbery of a grocery store. This claim exaggerates the importance of the prosecutor's statement and ignores the other evidence that Cone was indeed involved in selling drugs. This claim was raised and fully addressed during Cone's first post-conviction proceeding. At trial, the prosecution established that Cone's car was found to contain thee hundred thirty-nine dollars in cash in his wallet, Tr. at 1500, a huge quantity of drugs, so far beyond what could arguably be for one person's use that it required four pages of the trial transcript to list, Tr. at 1506-10, one thousand nine hundred thirty-two dollars in cash removed from the same suit bag containing the drugs, Tr. at 1512, a list of drugs, Tr. at 1513, and additional loose change, Tr. at 1513. The prosecutor argued at the closing of the guilt phase that the nineteen hundred dollars was evidence that Cone had been selling drugs rather than using them. The state court on post-conviction review held this remark to be improper but harmless. In particular, the state court noted that the primary evidence that Cone was engaged in selling drugs was the large quantity of drugs in the vehicle. Adden. 2, Doc. 4 at 4.

Under § 2254(d), Cone cannot establish that this decision involved an "unreasonable application of clearly established Federal law as determined by the Supreme Court of the United States." A review of the evidence in the record supports that Cone's out-of-his-mind-on-amphetamines defense was not rejected by the jury

because the prosecutor accused him of being a drug seller, but because he lacked credible evidence that he had in fact abused amphetamines during any period close to the murders. The prosecution's arguments regarding these funds were simply too remote from the real issues in this case to have affected the jury's deliberations. As this claim is without merit, there is no need for an evidentiary hearing to consider additional evidence. Accordingly, this claim is DISMISSED.

Cone's Sixth Amendment argument based on his attorney's failure to offer proof of mitigation also does not require a hearing. As Cone has procedurally defaulted his claims based on counsel's alleged failure to investigate and develop proof of mitigation, this claim must be evaluated based on the mitigating evidence available to counsel at the time he made the decision. The Court of Criminal Appeals, on review of the first post-conviction petition, explained that counsel made a series of reasoned tactical and strategic decisions regarding the proof of mitigation available to him. Of that proof, the two expert witnesses had already testified, and counsel determined there was no point to presenting cumulative testimony.

Counsel determined that Cone's mother was an ineffective witness whose exposure to further cross-examination would harm her son's case more than it would help. Counsel further determined that testimony by other potential witnesses about Cone's past would merely have revealed further criminal activity of which the jury was unaware. As the state court found, "[t]here is nothing in the record to show that the testimony of these witnesses would have benefited the defense." Adden. 1, Doc. 4 at 8.

Cone does not present any facts in this petition to refute this conclusion. Moreover, it is clear that all of the legitimate mitigating proof available to Cone was introduced during the actual trial. Cone's attack on this proposition is again based on procedurally defaulted claims and allegations.

Strickland v. Washington, 466 U.S. at 687, establishes the standard for an ineffective assistance claim. A petitioner must show:

1. deficient performance by counsel; and
2. prejudice to the defendant from the deficient performance.

See id. at 687.

A prisoner attacking his conviction bears the burden of establishing that he suffered some prejudice from his attorney's ineffectiveness. *Lewis v. Alexander*, 11 F.3d 1349, 1352 (6th Cir. 1993); *Isabel v. United States*, 980 F.2d 60, 64 (1st Cir. 1992). "[A] court need not determine whether counsel's performance was deficient before examining the prejudice suffered by the defendant." *Strickland*, 466 U.S. at 697. If a reviewing court finds a lack of prejudice, it need not determine whether, in fact, counsel's performance was deficient. *Id.* at 697.

To demonstrate prejudice, a movant under § 2255 must establish "a reasonable probability that, but for counsel's unprofessional errors, the result of the proceeding would have been different." *Id.* at 694. "A reasonable probability is a probability sufficient to undermine confidence in the outcome." *Id.* Additionally, however, in analyzing prejudice,:

> the right to the effective assistance of counsel is recognized not for its own sake, but because of the effect it has on the ability of the accused to receive a fair trial. Absent some effect of challenged conduct on the reliability of the trial process, the Sixth Amendment guarantee is generally not implicated.

Lockhart v. Fretwell, 506 U.S. 364, 368 (1993) (citing *United States v. Cronic*, 466 U.S. 648, 658 (1984)). "Thus an analysis focusing solely on mere outcome determination, without attention to whether the result of the proceeding was fundamentally unfair or unreliable, is defective." *Fretwell*, 506 U.S. at 369.

In this case, Cone has failed to demonstrate any prejudice from the failure of his trial counsel to introduce any then-available evidence at his sentencing hearing. Cone's argument that counsel's decision harmed him is based largely on speculative assertions about the effect of further evidence on the jury's deliberations, and on even more speculative assertions about what might have happened if counsel had investigated other evidence of mitigation. The latter category of claims is procedurally barred, however, and Cone's belated attempts in this court to produce mitigating evidence is of no avail.

The state appellate court, in ruling on the merits of this claim, found that the supposed mitigating evidence counsel did not introduce would have had no affect on the jury's verdict. Cone has failed to allege any facts or arguments that would undermine confidence in the reliability of the jury's verdict, and has thus failed to demonstrate a reasonable probability that the proffer of the withheld testimony would actually have affected the

jury's decision. Moreover, he has failed to carry his burden to demonstrate that the verdict was fundamentally unfair or unreliable. Nor has he demonstrated that the state court's decision did not comply with the requirements of § 2254(d)(1).

This case does not involve the type of total abdication of representation condemned in *Austin v. Bell*, 126 F.3d 843, 849 (6th Cir. 1997). Here, unlike *Austin*, counsel had already introduced some mitigating evidence, and his rejection of other evidence was based on specific analysis of the tactical effect of that evidence. This is unlike the situation in *Austin*, in which counsel simply decided that any efforts would be useless. That counsel miscalculated the jury's ultimate verdict does not turn otherwise unreviewable strategic decision-making into deficient performance. In evaluating an ineffective assistance claim, the court should not second-guess counsel's tactical decisions. *Adams v. Jago*, 703 F.2d 978, 981 (6th Cir. 1983).

Accordingly, Cone has failed to demonstrate that the state court's rejection of this Sixth Amendment claim "involved any unreasonable application of clearly established Federal law." This claim is, therefore, without merit. As Cone cannot surpass the threshold requirement of § 2254(d), he is not entitled to an evidentiary hearing under § 2254(e). This claim as to counsel's failure to introduce mitigating evidence is DISMISSED.

Similarly, Cone has failed to demonstrate any Sixth Amendment claim based on his counsel's decision to forego a closing statement during the sentencing phase. The state court found that counsel considered that the

closing argument made by one of the state court prosecutors was not so damaging as to require a response. Defense counsel considered the risk of a persuasive final response from the other more experienced state prosecutor to be so great that the defense would be better off relying on the opening statement counsel gave at the beginning of the sentencing phase. Cone fails to offer any basis for disputing the state court's determination that this decision was a tactical choice to foreclose rebuttal argument by the prosecution.

A review of the closing remarks by the first prosecutor confirm that they were relatively straightforward – simply a recitation of the existence of four aggravating circumstances. Trial Trans. at 2144-47. There was no dispute that three of these circumstances definitely existed,[10] and Cone presents no argument that any statement counsel might have made would have persuaded the jury to give greater consideration to the evidence of mitigation introduced during the guilt phase. The state court's decision was a reasonable application of Sixth Amendment standards to the facts presented in the state court post-conviction proceeding.

Cone now contends that he should be given a hearing on the ineffective assistance claims because, after the first

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[10] On direct review the Supreme Court held the fourth factor, knowingly creating a great risk of death to two or more people other than the murder victims, was not supported by the evidence because the robbery and assaults with intent to murder were not committed during the murders of the Todds. The court nevertheless held this error to be harmless beyond a reasonable doubt.

post-conviction proceeding, his original trial counsel suffered from a mental disorder that apparently culminated in his committing suicide. He offers no evidence beyond speculation, however, that this condition affected either counsel's original trial performance or the testimony he offered during the post-conviction proceeding. He has not offered any actual evidence of either deficient performance or prejudice affecting the fairness and reliability of Cone's trial or death sentence. Cone has not offered any evidence to support the conclusory allegation that counsel was incapable, during the first state court post-conviction proceeding, of remembering the basis for his trial decisions. Cone fails to point to any part of the trial record that contradicts counsel's post-conviction hearing testimony or any part of the record that is inconsistent with that testimony. Cone does not point to any portion of the post-conviction hearing transcript that shows that counsel acted or spoke as if he was incompetent, or to any references that would support an argument that counsel was simply fabricating his testimony.

Finally, these contentions are an attempt to resurrect the procedurally defaulted claims of inadequate investigation and preparation. The argument that counsel's tactical decisions regarding the penalty phase of the trial were deficient and prejudicial to Cone are based on retrospective research and speculation about the effect further evidence might have had on the jury. Additionally, most of these contentions are rooted in claims that were not presented during the first post-conviction proceeding. In effect, Cone is complaining, again, about the quality of his representation during that proceeding. As discussed

above, *Coleman* forecloses such claims, however disguised. The claims are without merit, and are dismissed.

Accordingly, as the above claims are all either procedurally barred or correct under § 2254(d)(1), disposition of those claims without an evidentiary hearing is proper. Rule 8(a), Rules Governing Section 2254 Cases in the United States District Courts. Petitioner's motion is, therefore, DENIED, and those claims are hereby DISMISSED.

Cone devoted considerable argument to his contention that he is entitled to an evidentiary hearing under *Townsend v. Sain*, 372 U.S. 293 (1963), and *Keeney v. Tamayo-Reyes*, 504 U.S. 1 (1992). As the Court has determined that the claims are without merit, and as Cone has not established that any decisions involved an unreasonable application of clearly established federal law, he is not entitled to an evidentiary hearing in any event. The Court, therefore, need not address the issue of whether or how the standards enunciated in *Townsend* and *Keeney* apply after the enactment of new 28 U.S.C. § 2254(e).

IV. CONCLUSION

For the reasons set forth above, petitioner's motion for an evidentiary hearing is DENIED, and the claims addressed in his motion are hereby DISMISSED.

IT IS SO ORDERED this 15 day of May, 1998.

/s/ Jon Phipps McCalla
JON PHIPPS McCALLA
UNITED STATES DISTRICT JUDGE

[Table Omitted In Printing]